

CHAPTER 8.

An Act to make further provision with respect to the constitution of the Judicial Committee of the Privy Council and to authorise the appointment of an additional Lord of Appeal in Ordinary.

[5th February 1929.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) His Majesty may by letters patent appoint two persons qualified as provided in this section to be members of the Judicial Committee of the Privy Council, and may from time to time fill any vacancies caused by death or otherwise in the offices of the persons so appointed.

Power to
appoint
Indian
judges, &c.
as addi-
tional
members
of the
Judicial
Committee.

(2) A person shall be qualified under this section if he is a Privy Councillor and is or has been a judge of a court which is a High Court within the meaning of clause (24) of section three of an Act of the Indian Legislature known as the General Clauses Act, 1897, or is a barrister, advocate or vakil of not less than fourteen years' standing who practices or has practised in British India.

(3) A person appointed a member of the Judicial Committee under this section shall hold his office during good behaviour subject to a power of removal by His Majesty on an address presented to His Majesty by both Houses of Parliament, but shall retire therefrom on attaining the age of seventy-two years.

(4) There shall be paid to each person appointed a member of the Judicial Committee under this section a yearly salary of two thousand pounds, and the said salary shall be charged on and paid out of the Consolidated Fund or the growing produce thereof.

(5) If provision is made for the payment to any such person out of the revenues of India of any sum, not

exceeding two thousand pounds, by way of increase of salary, that sum may be received by that person, and his salary shall be treated as being increased accordingly.

(6) His Majesty may, by Letters Patent, grant to any person appointed a member of the Judicial Committee under this section who having served as such member for a period of five years or upwards—

- (a) retires on attaining the age of seventy-two; or
- (b) is, before attaining such age as aforesaid, disabled by permanent infirmity from discharging the duties of his office;

a pension by way of annuity to be continued during his life of one thousand pounds a year, and any such pension shall be charged on and paid out of the Consolidated Fund or the growing produce thereof.

3 & 4 Will. 4.
c. 41.
50 & 51 Vict.
c. 70.

(7) Section thirty of the Judicial Committee Act, 1833, and section four of the Appellate Jurisdiction Act, 1887, shall be repealed, but nothing in this repeal shall, in the case of any person who at the passing of this Act is entitled under those sections to attend the sittings of the Judicial Committee, affect his right so to attend, or the payment to him of the allowance which at the passing of this Act he is receiving under those sections.

Additional
Lord of
Appeal.
39 & 40 Vict.
c. 59.
3 & 4 Geo. 5.
c. 21.

2. His Majesty may appoint one Lord of Appeal in Ordinary in addition to the six Lords of Appeal in Ordinary whom He may appoint by virtue of the Appellate Jurisdiction Act, 1876, as amended by the Appellate Jurisdiction Act, 1913, and the provisions of section six of the Appellate Jurisdiction Act, 1876 (as amended by any subsequent enactment) with respect to the appointment of Lords of Appeal in Ordinary and their duties, tenure of office, rank, position, salary and pension shall apply to the making of appointments and to persons appointed under this section.

Short title.

3. This Act may be cited as the Appellate Jurisdiction Act, 1929.

